



— THE STANDARD · SESSION 1 · WISCONSIN

The Law Is the Standard

Our duties under Wisconsin Chapter 452 — and why every system we run starts there.

Pedro Bando Rivera, Broker/Owner

GENERAL · OFFICE · ETHICS

WISCONSIN OFFICE

SESSION 1

— THE YEAR OF

2026 Is THE Year of SYSTEMS and NEW Skill Developments.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Mission

To redefine traditional real estate expectations delivering a **personalized**, **tech-driven**, and **client-centric** approach to buying and selling real estate.

Vision

To succeed in becoming the local industry **leader** focused on **humanizing** the real estate industry, leveraging innovation, investment and growth, while remaining a **community resource**.

— PRODUCTION CENTRIC BOUTIQUE FIRM

Misión

Redefinir las expectativas tradicionales del sector inmobiliario, brindando un enfoque **personalizado**, impulsado por la **tecnología** y centrado en el **cliente** para la compra y venta de propiedades.

Visión

Triunfar en convertirnos en el **líder local** de la industria enfocado en **humanizar** el sector inmobiliario, aprovechando la innovación, la inversión y el crecimiento, mientras seguimos siendo un **recurso para la comunidad**.

STORY TIME

My broker doesn't just teach me to close. He teaches me the law that protects my clients.

*Mi broker no solo me enseña a cerrar. Me enseña la ley que protege a
mis clientes.*

RETHOUGHT REAL ESTATE • RELEARN • THE STANDARD



Why I'm Required to Teach This



§452.132(1) – the firm shall supervise the brokerage service activities of each licensee

§452.14(3)(L) & (4) – violations reach the firm's license

REEB 15.04 – records & correspondence kept 2 years

This session isn't culture. It's **Chapter 452** — the one job the state says I can't delegate.

What My License Answers For

Six statutory responsibilities. Every office system maps to one of them.



Records

Kept **2 years** — from closing, or from agency termination if the deal never closes.

REEB 15.04



Trust Funds

To the firm **promptly**; banked within **48 hours**.

REEB 18.031



Disclosure Statements

Customers — before you negotiate. Clients — at the agency agreement.

§452.135



Your Advertising

Firm name clear & conspicuous. Nothing misleading. AI edits disclosed.

§452.136



Your Communications

"Other documents or correspondence" are firm records too.

REEB 15.04

Everything in today's session exists because **one of these boxes is mine.**

The File Outlives the Deal

“

*“A firm shall retain for at least 2 years... exact and complete copies of all listing contracts, agency agreements, **offers to purchase**, ... and other documents or correspondence utilized, received or prepared in connection with any transaction. The retention period shall run from the date of closing of the transaction or, if the transaction has not been consummated, from the date the listing contract or the agency agreement is terminated.”*

– WIS. ADMIN. CODE REEB 15.04(1)

EN CRISTIANO: If a client ever signed a listing contract or agency agreement, the file stays two years — from closing, or from termination if the deal never closed.



The deal can die. The file cannot. El deal puede morir. El expediente no.

The 48-Hour Clock

“

“A licensee who receives real estate trust funds shall promptly submit the funds to the firm of the licensee.”

– WIS. ADMIN. CODE REEB 18.031(2)

“A firm shall deposit all real estate trust funds... in a real estate trust account within 48 hours of receipt... If funds are received on a day prior to a holiday or other day when the depository institution is closed, the firm shall deposit the funds within the next 2 business days.”

– WIS. ADMIN. CODE REEB 18.031(1)

EN CRISTIANO: You promptly hand it to the firm. The firm has 48 hours from receipt to bank it — or the next 2 business days if a holiday closes the bank in between.

RECEIPT

Check touches your hand — promptly to the firm (REEB 18.031(2))

48 HRS

In the firm's trust account

HOLIDAY?

—
BANK CLOSED FOR A
HOLIDAY? NEXT 2 BUSINESS
DAYS

The clock starts when the check touches your hand — not when you get around to it. El reloj empieza cuando el cheque toca tu mano.

Before, Not After

“

“No firm... may negotiate on behalf of a party who is not the firm’s client unless the firm... provides to the party a copy of the... written disclosure statement.” — the Disclosure to Customers. “...a firm shall provide to a client a copy of the... written disclosure statement **not later than the time the firm enters into an agency agreement** with the client.” — the Disclosure to Clients.

– WIS. STAT. §452.135(1)(A) & (2)(A)

EN CRISTIANO: Customers get the disclosure before you negotiate for them. Clients get it no later than the moment they sign the agency agreement.

CLIENT SIDE The state wrote the words into the form.

 **Residential Listing Contract**
state-approved · Disclosure to Clients printed inside

 **Buyer Agency Agreement**
state-approved · disclosure + consent inside

 **Disclosure to Customers**
standalone

 **Multiple-rep consent**
a checkbox inside the form

Wisconsin drafts the language. The approved form carries it. One signature covers contract and disclosure.

CUSTOMER SIDE Before you negotiate for them.

Customer calls Tuesday



You’re about to write their offer



DISCLOSURE TO CUSTOMERS in their hands first

No agency agreement means customer — and the law stops you at the pen: no negotiating for them until the disclosure is delivered.

Paper before the negotiation — never after the handshake. El papel antes de la negociación, nunca después.

Every Post Is an Ad

“

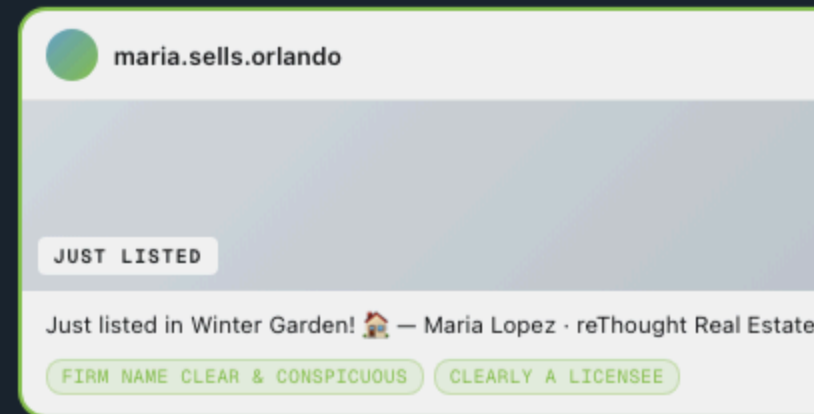
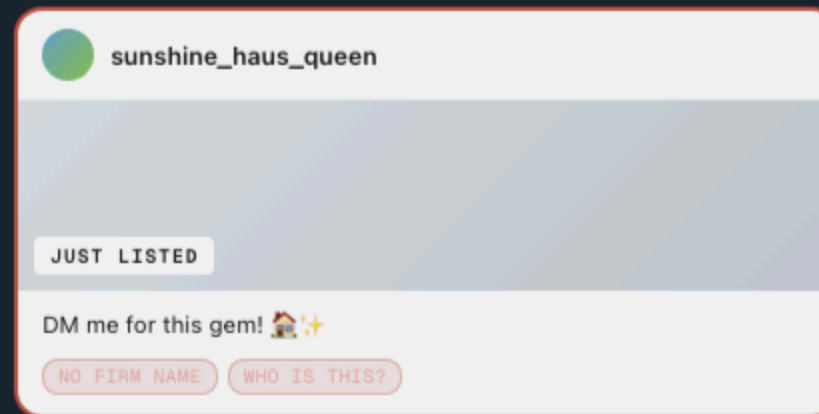
*“A licensee may not advertise in a manner that is false, deceptive, or misleading... The firm’s name as used in advertising shall be **clear and conspicuous.**”*

– WIS. STAT. §452.136(1) & (2)(B)

EN CRISTIANO: If a stranger scrolling by can’t clearly see which firm backs you, the post itself breaks the rule.

NEW · §452.136(1M)

AI-altered listing photos that create a false or misleading impression? Disclose it.



If the firm’s name isn’t clear and conspicuous, the post is the violation. Si el nombre de la firma no es claro y conspicuo, el post ya es la violación.

Write It Like Evidence

“

“...and **other documents or correspondence** utilized, received or prepared in connection with any transaction.”

– WIS. ADMIN. CODE REEB 15.04

EN CRISTIANO: Your transaction emails and messages aren’t private chit-chat — they’re firm records I have to keep, and evidence if a deal ever ends up in a dispute.

Maria Lopez → Seller (Elena R.)
Offer received on 123 Palm Ave — presenting it to you now. Full package attached. Your call on how to respond.

10:02 AM

EXHIBIT A

ResidentialOffer_Signed_Smith.pdf

PreApproval_Smith.pdf

Disclosures_Signed.pdf

Seller (Elena R.) → Maria Lopez
Let's counter at \$430,000, closing Oct 30. Please send it today.

2:40 PM

WRITTEN DIRECTION - ON FILE

Maria Lopez → Buyer's Agent
Seller counters at \$430,000, closing Oct 30. Signed counteroffer attached — response by Thu 6 PM.

3:05 PM

Counteroffer_430000_Signed.pdf

Write every message like a judge will read it. One day, one might. Un día, capaz lo lea.

Supervise. Review. Access.

“

“A firm shall **supervise** the brokerage service activities of each licensee associated with the firm... the supervising broker ‘shall review’... **prior to the closing** of a transaction.”

– WIS. STAT. §452.132(1) & (4)(A)

EN CRISTIANO: If I don’t actively supervise every one of you, and review every file before closing, the Division can discipline my license for it — not yours, mine.

01

SUPERVISE

Training before the field.

Tuesday sessions

Written office policies

02

REVIEW

Every file, reviewed before closing — the statute says so.

Broker file review

Every file lives in the loop

SUBMITTED → REVIEWED ✓

03

ACCESS

You always have a supervising broker to consult.

Open door

Microsoft Teams

Company email



Three lanes. One firm license — and §452.14(4) says the firm answers for its people. If a lane goes dark, discipline lands here.



LICENSE

When I review your file, that’s not micromanagement — that’s the statute happening. Eso no es microgerencia, es el estatuto pasando.

ACT 2

\$452,133 - .135

When a client says “you work for me”... do you?

Wisconsin gives every person you serve seven duties — and reserves the loyalty tier for clients. Most agents can't name which one is in front of them.

01 · ?

02 · ?

03 · ?

*Cliente, customer o representación múltiple. ¿Cuál tienes
delante?*

Three Relationships. One Piece of Paper.

Wisconsin gives you three ways to work with a buyer or seller. If nothing is in writing — they're a customer.

NO WRITTEN AGREEMENT? THIS IS THEM

Customer

Everyone you serve — owed all seven §452.133(1) duties. But you may **NOT** negotiate on their behalf.

§452.134(1)(b): a firm may not negotiate on behalf of a party unless that party is the firm's client.

WRITTEN AGENCY AGREEMENT

Client

The written agreement makes them a client — adds the **loyalty tier** + the duty to negotiate for them.

§452.01(1m): a written agreement between a firm and a client authorizing brokerage services.

WRITTEN CONSENT — CHECKBOX IN THE FORM

Multiple Representation

Both sides are the firm's **clients** — with designated agency two agents advocate; without it, the firm stays neutral.

§452.134(2)&(3): all clients' consent in writing; designated agency needs its own separate written consent.

In Wisconsin, **the paper makes the client.** No writing — no client. But never zero duties.

Duties to All Parties: **7** You Owe Everyone

Every party gets these seven duties — client or not. This is the floor, not the ceiling.

01 Brokerage services provided honestly and fairly

02 Brokerage services provided with reasonable skill and care

03 Timely written disclosure of material adverse facts
the firm knows that the party does not know

04 Confidentiality of information given in confidence
continues after closing & after representation ends
· ITS OWN SLIDE AHEAD

05 Accurate market-conditions information, on request

Customer does not mean unprotected. Cliente o no — le debes los siete.

Clients Get the **Loyalty** Tier

Five additions unlock with a written agency agreement — on top of everything customers already get.

01 Everything on the last slide — **all seven**

02 **Loyalty**
the client's interest first — before the firm's, before any non-client's

03 **Info & advice**
on request

04 **Disclose all material info**
except other parties' confidential info

05 Follow the agency agreement
and its terms and conditions

Only **ONE** duty can ever be waived — negotiation, in writing. The rest “may not be waived.” §452.133(6)

Client = **advocate**. Customer = **fairness**. Know which hat you're wearing.

Confidentiality: What You Never Reveal

Most violations sound like friendly small talk. Each one is a statutory breach.



One buyer's offer terms to another buyer

| *"The other offer is 405 — beat it"*

REEB 24.12 — THE MULTIPLE-OFFER TRAP



Your client's bottom line

| *"Offer 380, they'll take it"*



Anyone's motivation

| *"It's a divorce — they're desperate"*



Anything given in confidence

| *"Between us..." isn't a loophole*



It never expires

| *The duty survives closing — forever*

You MAY say: other offers exist, one was accepted, contingencies exist. You NEVER share the terms. — **"Bring your best offer."**

When the Law Demands Paper

Two legal requirements. Zero drafting — the language lives in our forms.

CUSTOMER

Disclosure to Customers **BEFORE** you negotiate for them.

§452.135(1)

CLIENT

A **written agency agreement** — that's what makes a client — with Disclosure to Clients at signing.

§452.01(1m) · §240.10 · §452.135(2)

YOU NEVER DRAFT THIS LANGUAGE — THE STATE WROTE IT INTO THE APPROVED FORMS (REEB 16.04(1) MAKES THEM MANDATORY):



Residential Listing Contract *(disclosure + consent inside)*



Buyer Agency Agreement *(disclosure + consent inside)*



Disclosure to Customers *(standalone)*

WHEN WOULD THE CONSENT CHECKBOX MATTER?

Your buyer-client falls for your firm's own listing. **Both clients consent in writing** — with designated agency, two agents each advocate for their own client; without it, the firm goes strictly neutral. It's a three-way checkbox printed right in the form.

A phone call is not consent. A text that says “ok” is not consent. **Signed or initialed. On file.**

Buyer Agency Agreement: Before You Tour, You Sign

Wisconsin Law

- No statute forces a buyer to sign
- But you may not **negotiate** for a non-client — §452.134(1)(b)
- And an agency agreement is, by definition, written — §452.01(1m), §240.10

NAR + MLS Policy — Binding on Us

- ✓ **Written agreement before touring** — including live virtual tours
- ✓ Compensation **specific & conspicuous** — objectively ascertainable, never open-ended
- ✓ You may **not collect more** than the buyer agreed to — from any source

In Wisconsin, the Agreement IS the Relationship

01 No written agreement? They're a customer — seven duties, but you can't negotiate on their behalf.

02 The written buyer agency agreement is what makes them your **client** — loyalty tier unlocked.

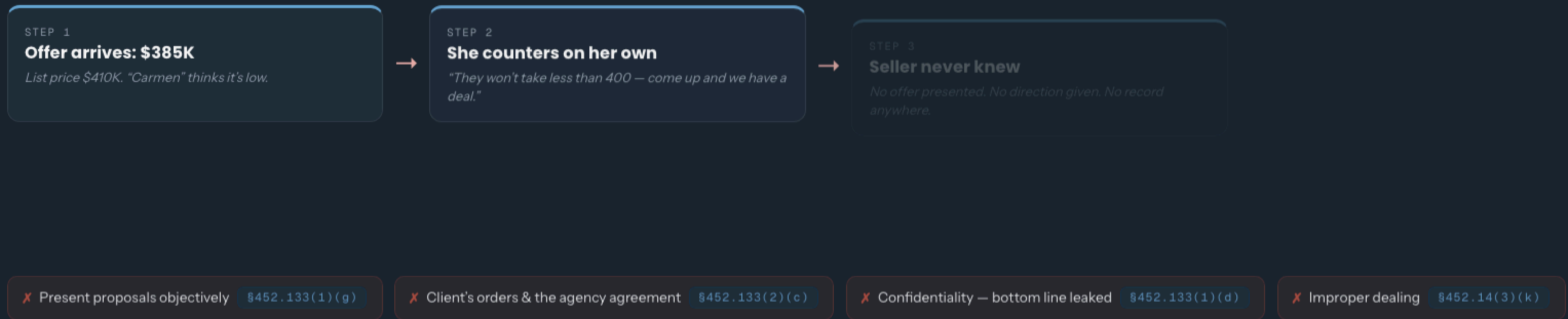
03 NAR adds the before-touring deadline; Wisconsin adds the teeth: **no writing, no advocacy**.

NO SIGNED AGREEMENT = NO TOUR

IT'S ALSO HOW YOU GET PAID

This isn't friction. It's the moment your buyer learns **what you do and what you earn**. Clarity is the brand.

The Invisible Seller



Every offer gets presented. The seller directs the response. You advise — they decide. Cada oferta se presenta — el seller decide.

The Offer Nobody Answered

“Marcos” sends a clean full-price offer. Day 1... day 2... day 3 — his buyers walk.

§452.133(1)(g) – present proposals “in an objective and unbiased manner”

NAR SOP 1-6 – “as quickly as possible”

NAR SOP 1-7 – written affirmation of presentation on written request

1	Acknowledge — same day	“Received, thank you — presenting to my seller today.” In writing.
2	Present — same day	Seller sees every offer. Log when and how it was presented.
3	Respond — in writing	Accept, counter, or decline — whatever the seller directs. Paper trail always.

Silence is not a negotiation strategy. **Every offer deserves an answer** — and a cooperating broker can demand written proof it was presented.

The Naked Offer

“Hi, my clients want to offer \$415K on Palm Ave — let me know.” That was the whole offer.

What arrived

- ✗ A price... in an email
- ✗ No signed contract — no initials, blanks empty
- ✗ No pre-approval or proof of funds
- ✗ No disclosures, no deadlines, no trust details

What a professional sends

- ✓ On the state-approved offer form (my pre-closing review literally checks this — §452.132(4))
— every blank filled
- ✓ Pre-approval / POF — dated, matching the buyer
- ✓ Signed disclosures + trust funds: who holds it, when it lands
- ✓ Response deadline + one clean summary email

“Reasonable skill and care” is a statute, not a compliment. In multiple offers, complete files get ranked first — every time.

An Offer Lands on Your Listing. **Now What?**

1

Acknowledge — same day, in writing

"Received — presenting to my seller today."

2

Upload to the loop — immediately

The moment it's in, it's a firm record. REEB 15.04

3

Present to your seller — same day

Phone + email. The email is your proof of presentation.

4

Get the seller's direction — in writing

Accept / counter / decline. Their words, not your assumption.

My Loops > 123 Palm Ave — Listing > Offer 1 — Smith



Residential Offer to Purchase — Smith \$385,000

SUBMITTED



Pre-Approval Letter — Smith

SUBMITTED



Seller Counter #1 — \$402,500 (seller-directed)

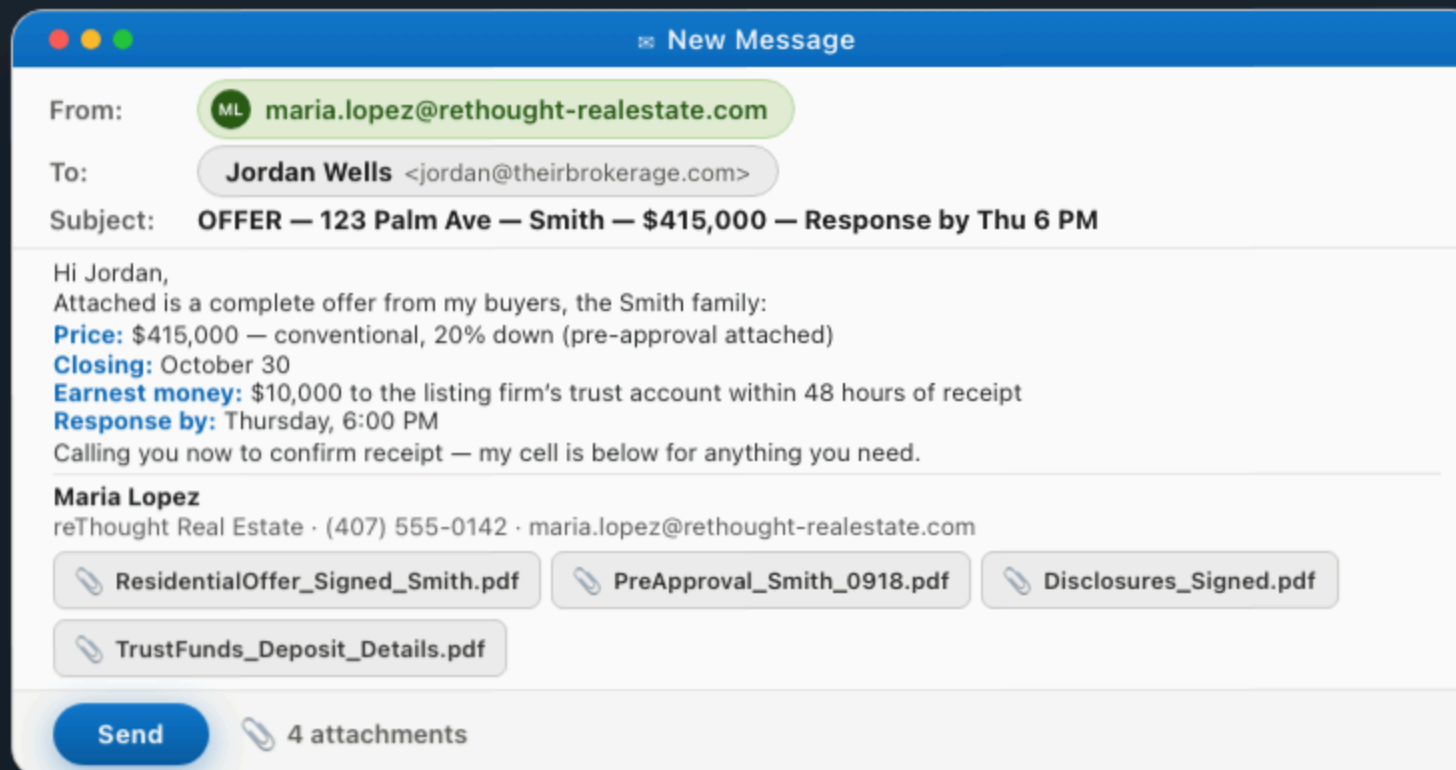
SENT

Activity

- Offer received & acknowledged — 10:02 AM
- Presented to seller (call + email) — 11:15 AM
- Seller directed counter at \$402,500 — 2:40 PM
- Counter delivered to buyer's agent — 3:05 PM

A file that looks like this can never be accused of sitting on an offer. **The record answers for you.**

Sending an Offer Like a Professional



Send — then call to confirm receipt

The call makes your offer impossible to miss.

Complete package = your diligence duty

Reasonable skill and care is a statute — an incomplete offer is a diligence failure.

Why Every File Lives in the Loop

2-Year Record Duty — met on submit

Every contract, offer & disclosure preserved the moment it's uploaded.

REEB 15.04

Pre-closing broker review = the statute's own checklist

"Submitted → Reviewed" is supervision happening in real time, before closing.

\$452.132(4)

The 48-hour trust clock — proven

Submitted promptly; banked within 48 hours. Timestamps are the evidence.

REEB 18.031

My Loops

> 88 Bayshore Dr — Purchase > Documents

Residential Offer to Purchase — Executed

REVIEWED ✓

Trust Deposit Letter — \$12,000 · received 9/19, deposited 9/21

REVIEWED ✓

Disclosure to Clients

REVIEWED ✓

Inspection Addendum

NEEDED

Broker review — PB ✓ Sep 21, 4:12 PM · file audit-ready

When the Division asks a question, **the loop answers in 30 seconds.** One system. Three statutes. Zero stress.

Why Business Runs on Company Email



It's a firm record

Transaction emails are part of the 2-year file — captured automatically.

REEB 15.04



It carries the firm's name

Often your first impression — licensed professional, real firm, real broker.

§452.136(2)



It protects client data

Pre-approvals, bank statements, trust instructions — business-grade security.



It covers your client

You're on a plane, deal on fire? The office can step in and protect them.

COULD BE ANYONE

sunshineagent407@...

no firm, no broker, no way to verify

BACKED BY A BROKERAGE

maria.lopez@rethought-realestate.com

a licensed professional at a real firm — verifiable in one glance

Every message from your company address quietly advertises one thing: **this agent is backed by systems.**

Your Voicemail Is a Duty Checkpoint

You can't present proposals "in an objective and unbiased manner" if the market can't reach you — or doesn't trust it reached the right person.



Maria Lopez
reThought Real Estate



GREETING • 0:12

RECORD THIS TODAY — 30 SECONDS

"You've reached **[your name]** with **reThought Real Estate**. I can't take your call right now — leave your name and number and I'll call you back the **same business day**."

"Ha llamado a [su nombre] de reThought Real Estate. Deje su nombre y número y le devuelvo la llamada el mismo día laboral."

Name + brokerage + a promise — then **keep the promise**: same-business-day callbacks. That's the standard.

Eight Commitments. Zero Preferences.

Every one traces to a statute or rule we read today. Session 2 opens with a self-check against these.

01

Relationship named

Customer, client, or multiple rep — the paper matches

02

Disclosure before I negotiate

Customer or client — right form, right moment

03

Offers presented same day

Acknowledged, presented, logged

04

Client directs, I execute

Never negotiate without written direction

Complete offer packages

Complete offer packages
must be approved by the broker and
submitted to the client.

Ch. 452 + REEB rules + the REALTOR® Code — **translated into eight habits.**

— LIVE EXERCISE • 10 MINUTES • PAIRS

Duty Role-Play

Three rounds. Switch roles after each. The statutes only protect your client if they come out of your mouth naturally.

EN

R1

“So... do you work for me or not?”

Explain customer vs. client in plain language — 60 seconds, no statute numbers.

R2

“Just tell me — what will they really take?”

Answer without breaking confidentiality — remember REEB 24.12: existence yes, terms never.

R3

“Don’t bring me anything under \$400K.”

What must exist before you can filter offers? (It starts with “in writing...” — and it lives in the agency agreement.)

ES

“¿Entonces... trabajas para mí o no?”

Explica customer vs. cliente en lenguaje simple — 60 segundos, sin números de estatuto.

“Dale, dime — ¿cuánto es lo que de verdad aceptan?”

Responde sin romper la confidencialidad — recuerda REEB 24.12: existencia sí, términos nunca.

“No me traigas nada por debajo de \$400K.”

¿Qué tiene que existir antes de poder filtrar ofertas? (Empieza con “por escrito...” — y vive en el agency agreement.)

I’ll be walking the room. **Simple beats impressive** — if your partner can’t repeat it back, say it simpler.

— AI SHORTCUT

Use AI to Drill Your Duties

Copy this prompt. Paste it into Claude or ChatGPT. 10 minutes a night until Session 2.

COPY · PASTE INTO YOUR AI PROJECT

CLAUDE / CHATGPT / GEMINI

You are a tough-but-fair Wisconsin real estate broker running a compliance drill. Quiz me ONE scenario at a time on my duties under Wis. Stat. §452.133 (duties to all parties vs. clients), §452.134 (multiple representation and designated agency), §452.135 (disclosure statements), REEB 24.12 (offer confidentiality), and NAR's written buyer agreement rule. Play buyers, sellers, and agents who pressure me to break a duty. After each answer tell me: (1) was I legally correct, (2) which duty was at stake, (3) a cleaner way to say it to a real client. Keep score out of 10. Start easy, get harder.

The pressure is the practice. The AI plays the pushy buyer so the real one never catches you off guard.

//

It takes 20 years to build a reputation and five minutes to ruin it. If you think about that, you'll do things differently.

— WARREN BUFFETT

Everything today was reputation insurance — for you, for this firm, and for every family that trusts us with the biggest decision of their lives.